

Raj Kumar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 26 February 2019 · Writ-C No. 5674 of 2019 · WRIT - C No. - 5674 of 2019 · **Provisional assessment dated 5 December 2018 set aside for Para 6.8 non-compliance; liberty to assess afresh; costs of Rs 5,000 against the licensee.**

HEADNOTE

A Division Bench of the Allahabad High Court quashed a Section 126 provisional assessment dated 5 December 2018 as wholly non-speaking and as issued without complying with Para 6.8 of the Uttar Pradesh Electricity Supply Code, 2005, and without application of mind. Following *Ashok Kumar v. State of U.P.*, 2008 (6) ADJ 660, the Court held that a provisional assessment must satisfy Para 6.8. The assessing authority was left at liberty to proceed afresh in accordance with Para 6.8 and *Ashok Kumar*. Costs of Rs 5,000 were imposed on the licensee for compelling the consumer to litigate.

FACTUAL SUMMARY

On 24 June 2018 a raid team checked the petitioner's house in District Kasganj and reported theft of electricity. An FIR was lodged under Section 135 of the Electricity Act, 2003 at Police Station Ganjdudwara, and the Executive Engineer also started assessment under Section 126. The petitioner represented against the provisional assessment; that representation was rejected. He then challenged the assessment order dated 5 December 2018. After an amendment was allowed, the Division Bench heard the writ on 26 February 2019.

REUSABLE CONSTRUCTIONS

1. A Section 126 provisional assessment must comply with Para 6.8 of the Uttar Pradesh Electricity Supply Code, 2005; a wholly non-speaking order that neither fulfils Para 6.8 nor shows application of mind is liable to be set aside. ¶ 3-5
2. After quashing a Para 6.8-noncompliant provisional assessment, the assessing authority may proceed afresh only in accordance with Para 6.8 and the law in *Ashok Kumar*. ¶ 5

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

provisional assessment procedure

HOLDING

For a provisional assessment under Section 126 of the Electricity Act, 2003, the assessing authority must comply with Para 6.8 of the Supply Code, 2005, as held in *Ashok Kumar*. A wholly non-speaking assessment that does not fulfil Para 6.8 and does not show application of mind cannot be sustained and is set aside, with liberty to proceed afresh in accordance with Para 6.8. ¶ 3-5

PRINCIPLE TAGS

para-6.8-non-compliance-vitiates-assessment-and-recovery The Court set aside the 5 December 2018 provisional assessment because Para 6.8 of the Supply Code, 2005 had not been fulfilled and the order was wholly non-speaking, with no application of mind. Lead authorities: *Ashok Kumar v. State of U.P.* [2008 (6) ADJ 660]. ¶ 3-5

s126-procedural-strictness-notice-and-hearing Section 126 assessment was treated as procedurally strict: the representation against the provisional assessment did not save an order that skipped Para 6.8 and failed to record reasons. Lead authorities: *Ashok Kumar v. State of U.P.* [2008 (6) ADJ 660]. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — GUILT OR MAINTAINABILITY OF THE SECTION 135 THEFT FIR

The FIR at Police Station Ganjdudwara is recited as background; the Court did not examine the criminal case. ¶ 2

NOT DECIDED — QUANTUM OF THE SECTION 126 ASSESSMENT ON THE MERITS OF UNAUTHORISED USE
The order was quashed for Para 6.8 non-compliance and non-speaking reasons; a fresh assessment was left at liberty. ¶ 5

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Ashok Kumar v. State of U.P.</i> 2008 (6) ADJ 660			3, 5	Referred

SCJ-2306 · Raj Kumar v. State of U.P. · Writ-C No. 5674 of 2019 · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.